

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Evelis Otero	Team: Intake	CCRB Case #: 201408659	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 08/21/2014 11:15 PM	Location of Incident: Pennsylvania Avenue and Hornell Loop	18 Mo. SOL 2/21/2016	Precinct: 75
Date/Time CV Reported Fri, 08/22/2014 11:37 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 08/22/2014 11:37 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Christen	05111	945586	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mario Gandini	18623	934895	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Christen	Abuse: PO Brian Christen refused to provide his name and shield number to § 87(2)(b)	A . Unsubstantiated

Case Summary

On August 21, 2014, at approximately 11:15 p.m., § 87(2)(b) was involved in a vehicle accident with another motorist, § 87(2)(b) in the vicinity of Pennsylvania Avenue and Hornell Loop in Brooklyn. PO Mario Gandini and PO Brian Christen responded to the location shortly thereafter. The officers approached § 87(2)(b)'s vehicle first and spoke with him. Afterwards, the officers approached § 87(2)(b) vehicle and spoke with her. After obtaining their statements and necessary documents, PO Gandini prepared a vehicle accident report. PO Christen remained by § 87(2)(b) vehicle and spoke with her. § 87(2)(b) asked PO Christen to arrest § 87(2)(b) but he refused to do so. § 87(2)(b) then requested PO Christen's name and shield number, which he allegedly refused to provide (**Allegation A**). No summons or arrest resulted from this incident (complaint encl. B-1 – B-2 and CCRB statement encl. C-1 – C-9).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

This complaint was deemed unsuitable for mediation. As of the date of this report, the CCRB has been unable to learn whether § 87(2)(b) has filed a civil lawsuit. § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A-2).
- PO Christen has had one substantiated CCRB allegation in his 6 years of service with the NYPD (encl. A-1). In CCRB case number 201106834, the allegation was discourtesy (word). The CCRB recommendation was command discipline. However, the NYPD took no disciplinary action because the statute of limitation had expired.

Finding and Recommendations

Explanation of Subject Officer Identification

PO Christen acknowledged interacting with § 87(2)(b) § 87(2)(g)

Allegation A – Abuse of Authority: PO Brian Christen refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that PO Christen refused to provide his name and shield number upon request. PO Christen acknowledged that § 87(2)(b) requested his name and shield number but claimed that he verbally provided this information to her, which PO Gandini corroborated (encl. D-5 – D-19). § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as *unsubstantiated*.

Team: Strike Team

Investigator: _____ Evelis Otero 12/22/2014
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date